

Sahib Singh vs Neha Kumari on 20 March, 2025

Author: Sanjay Dhar

Bench: Sanjay Dhar

Sr.No. 83

HIGH COURT OF JAMMU & KASHMIR AND LADAKH
AT JAMMU

MA No. 8/2025

Sahib Singh, Age 26 years
S/o Sh. Nirvar Singh
R/o H.No. 404, Sector-1/5, Trikuta Nagar,
Jammu.

....Appellant(s)/Petitioner(s)

Through :- Mr. Raman Sharma, AAG.

V/s

1. Neha Kumari
W/o Sh. Sahib Singh, D/o Sh. Jia Lal, R/o
H.No. 404, Sector- 1/5, Trikuta Nagar,
Jammu.

....Respondent(s)

2. Arun Sharma
S/o Sh. Ved Parkash Sharma,
C/o M/S Sharma Collections, Near SBI
ATM, Chiri Road, Mishriwala, Jammu.

Through :- None.

Coram: HON'BLE MR. JUSTICE SANJAY DHAR, JUDGE

ORDER

20.03.2025

1. The appellant has challenged order dated 01.01.2025 passed by the learned Additional Principal Judge, Family Court, Jammu (hereinafter referred to as "the trial Court") whereby the application of the appellant under Section 14(1) of Hindu Marriage Act, 1955 has been dismissed.

2. Despite service, nobody has appeared on behalf of the respondents. They are, accordingly, set ex-parte.

3. It appears that the appellant had filed the petition under Section 13 of the Hindu Marriage Act seeking dissolution of his marriage with respondent No.1 by grant of a decree of divorce. Since, the

petition was instituted prior to the expiry of one year from the date of solemnization of the marriage, as such, the petition was accompanied by an application under Section 14(1) of the Hindu Marriage Act seeking permission to present the petition before the expiry of one year. By virtue of the impugned order, the learned trial Court has dismissed the said application. Hence, the present appeal has been filed.

4. Heard learned counsel for the appellant and perused the material on record.

5. It has been contended by learned counsel for the appellant that the impugned order is cryptic in nature in as-much-as the learned trial Court has not assigned any reasons for rejecting the prayer of the appellant. It has been submitted that the appellant had, in his application as well as in the main petition, assigned cogent reasons in support of his prayer for permission to file the petition before the expiry of the statutory period of one year.

6. If we have a look at the application filed by the appellant under Section 14(1) of the Hindu Marriage Act before the learned trial Court, it is revealed that in the said application, the appellant had pleaded that respondent No.1 is living a life of adultery and, as such, the appellant has neither any reason nor any capacity to continue living with her. It was further pleaded that the extreme mental torture, emotional distress, insult and the embarrassment endured by the petitioner cannot be countenanced by any measures, as such, the same tantamount to exceptional hardship to him owing to the acts of extreme depravity on the part of respondent No.1. In the application, it was also pleaded by the appellant that averments made in the main petition may be read as part of the said application. A perusal of the main petition reveals that the appellant has given succinct details about the manner in which he has come to know about the alleged adulterous life of respondent No.1 and he has also placed on record along with the main petition USB which contains the audio and video files in support of his allegations against respondent No.1.

7. A perusal of the impugned order passed by the learned trial Court shows that the said Court has discussed the case of the appellant in three lines in para (2) of the said order by observing that there is no exceptional depravity on the part of the respondent No.1 which is lacking in the present case as per the material attached in this case. The learned trial Court has not discussed the material which was placed by the appellant along with the main petition nor has he taken into consideration, the details given by the appellant about the alleged adulterous life of respondent No.1 in his petition.

8. Thus, the order impugned is absolutely cryptic in nature. Reasons are the heartbeats of a judicial order and an order passed by a judicial authority without reasons tantamount to arbitrariness on the part of the said authority. Such an order cannot be countenanced in law. The impugned order in these circumstances deserves to be set aside.

9. Accordingly, the appeal is allowed and the impugned order passed by the learned trial Court is set aside and the case is remanded to the learned trial Court with a request to consider the application of the appellant under Section 14(1) of the Hindu Marriage Act afresh in accordance with the law and to pass a reasoned order thereon.

10. A copy of this order be sent to learned trial Court.

(Sanjay Dhar) Judge Jammu:

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